

VI

JUSTICE REQUIRES A CORRECT RESULT, TO-WIT: ABSOLUTE IMMUNITY.

In his introduction to the monumental work, The Nature of the Judicial Process, Justice Benjamin Cardozo stated:

"There is in each of us a stream of tendency whether you choose to call it philosophy or not, which gives coherence and direction to thought and action. Judges cannot escape that current any more than other mortals. All their lives, forces which they do not recognize and cannot name, have been tugging at them - inherited instincts, traditional beliefs, acquired conditions; and the resultant is an outlook on life, a conception of social needs, a sense in James's phrase of 'the total push and pressure of the cosmos', which, when reasons are nicely balanced, must determine where its place shall fall. In this mental background every problem finds its setting. We may try to see things as objectively as we please. Nonetheless, we can never see them with any eyes except our own. ..."

Fundamental concepts underlying "jurisdiction" are deistic. Judges, however, are mere humans and prone to err. The doctrine of judicial immunity in our system incorporates this understanding. If the judge has jurisdiction over the subject matter in dispute, the fact that he errs even in the case of determining whether or not he has jurisdiction of the persons involved will not subject him to civil liability. Under Indiana law he has the authority and indeed the duty to make such decisions, and, of course, to err is human; thus, such protection is both necessary and just.

